

WASHINGTON STATE

Flock Safety cameras in Centralia are here to stay, even under new state restrictions

By Jacob Moore, The Chronicle, Centralia, Wash. *The Tribune Content Agency*

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As new restrictions on license plate-reading cameras take hold across the state, the Centralia Police Department remains confident in its use of its Flock Safety cameras, even if the technology's benefits are somewhat reduced by recent state legislation.

Gov. Bob Ferguson signed Senate Bill 6002 on Monday, March 30. The bill sets new state regulations on automated license plate readers (ALPRs) in the state that apply to systems like those sold and maintained by Flock Safety. The

regulations also apply to similar technology used by other law enforcement agencies that flag license plates seen through patrol car dash board cameras.

Because of an emergency clause included in the bill, the new restrictions went into effect immediately. Since then, some larger law enforcement agencies to the north have reported shutting down their systems, at least temporarily, to comply with the new laws. The same cannot be said for Centralia.

Centralia Police Chief Andy Caldwell still considers the technology a "force multiplier" even with the new restrictions. Caldwell likened his approach to changes to how law enforcement approached a now defunct law that barred law enforcement from chasing fleeing vehicles, saying "we complied with the law, but we found new tactics."

"I want to be the optimist that says, 'OK, great. We can still track theft. We can still do domestic violence. We can still do destruction of private property. We can still track other things,'" Caldwell said.

The new laws do mean a few changes to the local system, but the bulk of what the department uses it for will be unchanged. A big change in the new bill is that law enforcement can now only use the cameras to enforce felonies and gross misdemeanors. That means the department will no longer be able to use its cameras to investigate misdemeanor hit-and-runs, like those on unattended cars. While he laments the loss of the tool's use in those cases, Caldwell added that it's an improvement over an initial proposal that would have only allowed the use of ALPRs for felony enforcement and investigation.

"The hit-and-run. That one was a little bit sad," Caldwell said. "But if you really look at what's a gross misdemeanor and above, it's the vast majority of stuff we do, so that really didn't hurt us that much."

The restrictions laid out in the bill also reduce the amount of time the license plate photos can be stored from 30 days to 21 days. For Caldwell, the new retention time was a big win over the 72-hour retention time that was

originally proposed in the bill. The 21-day period is unlikely to change enforcement for the local department.

The two changes Caldwell is most concerned about relate to enforcement near schools and notices from a national watch list.

The new restrictions limit where license plate readers can be used and bar them from capturing images of protected establishments like schools, places of worship, reproductive health facilities and courthouses or being used at all within 500 feet of those buildings. The Centralia Police Department has three cameras that violated that rule that have since been shut off.

Under normal circumstances, the cameras could be moved, but Centralia finds itself in the unique position of currently having more cameras than it's paying for, meaning it will simply lose the three cameras that violate the new rules. Those cameras observe the intersections at West Reynolds Avenue and Johnson Road near Fords Prairie Elementary, West Main Street and South Iron Street near the Centralia Timberland Library, and, finally, West Main Street and Tilley Avenue near Planned Parenthood.

Caldwell said the removal of cameras from schools is a big hit, pointing out that cameras near schools could be used in responding to shootings, kidnappings or other troubling crimes.

"I think it's absolutely foolish to say that we're not going to have Flock cameras around schools," Caldwell said.

Another side effect of the new law, according to Caldwell, is that the local department will no longer get notifications from the National Criminal Information Center (NCIC) when vehicles associated with individuals on the national watchlist enter the area. The NCIC is a list maintained by the Federal Bureau of Investigation that lists information on known individuals from fugitives to missing persons.

The reception to the new restrictions on ALPRs has been mixed as parties on both sides of the issue have aired some dissatisfaction with the final bill that still implemented restrictions on law enforcement, but didn't go as far as some advocates had hoped. Ferguson referred to the bill as striking a balance during its official signing last week.

In recent reports from KUOW, police departments in Seattle and Kent said they temporarily shut off their license plate readers, especially those connected to dash cams in their patrol cars, while they figure out how to adapt the system to comply with the law. Restrictions barring the technologies used near protected areas appear to be causing trouble for readers attached to patrol cars.

Pierce County Sheriff Kieth Swank recently appeared in an interview with KIRO Newsradio and said his county agency had shut their cameras off entirely because of the new law. In a press release from the Pierce County Sheriff's Office, the agency said it was unable to operate the cameras without violating the new restrictions, which would put "deputies at risk of unintentionally violating the law."

Swank was a staunch opponent of a list of bills proposed in the state's 2026 legislative session that set new restrictions on law enforcement agencies and have since been signed into law. Those include one change that bars law enforcement from wearing face coverings, with some notable exceptions, and another that allows for the decertification and removal of elected sheriffs.

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